



POLICE DEPARTMENT

December 27, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202306084 (Incident Date: July 5, 2023) regarding Police Officer Arturo Sanchez, Tax No. 963740 (PODS No. C-032265) and Police Officer Melanie Obrien, Tax No. 971586 (PODS No. C-032267)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202306084, pertaining to Police Officers Arturo Sanchez and Melanie Obrien. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officers would be detrimental to the Police Department's disciplinary process.

In this matter, Officer Sanchez and his team conducted a stop of a for-hire vehicle because it appeared the rear passengers were not wearing seatbelts as required by law. However, upon approach of the vehicle, the driver and all passengers were wearing seatbelts. Officer Sanchez, after ascertaining that the driver was properly licensed, concluded the stop without offering a business card to any of the vehicle's occupants. Later that evening, the passengers of the vehicle spoke with Officer Obrien, by telephone, in order to get the information of the officers who stopped them. Officer Obrien, working in a different precinct than Officer Sanchez, had no knowledge of the stop and, with the limited information provided to her, was unable to provide the passengers with Officer Sanchez's information. However, she did give them the CCRB's contact information.

After reviewing the available evidence concerning the allegations against Officer Sanchez, the Police Commissioner finds that, in this instance, the officer should have offered his business card to the occupants of the vehicle. Similarly, Officer Obrien should have offered to take a civilian complaint for the passengers over the phone. However, given the totality of the circumstances and

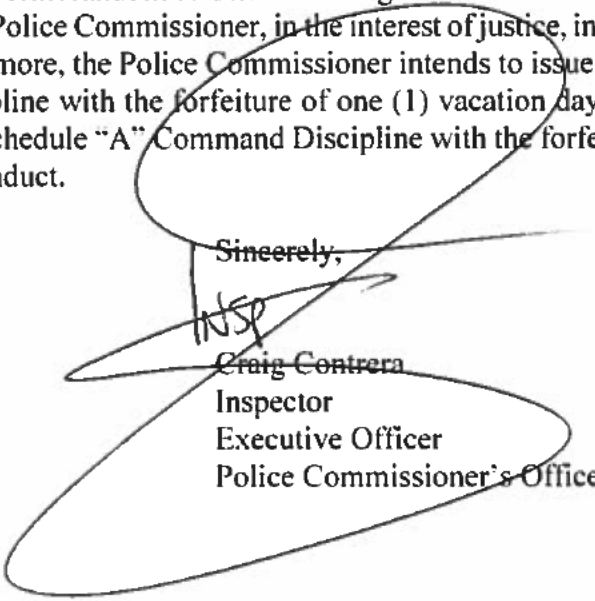
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both officers' lack of disciplinary history, the Police Commissioner believes a lesser penalty is warranted.

Both officers have no formal disciplinary history nor any prior substantiated CCRB cases. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice, intends to retain jurisdiction over this matter. Furthermore, the Police Commissioner intends to issue Officer Sanchez a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for his alleged misconduct and Officer Obrien a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for her alleged misconduct.

Sincerely,

A large, stylized handwritten signature in black ink, which appears to read "NSP" or "NSP" with a flourish, is written over the typed name and title of the signatory.

Craig Contrera
Inspector
Executive Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



MOHAMMAD KHALID
INTERIM CHAIR

January 3, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202306084 (Incident Date: July 5, 2023) regarding Police Officer Arturo Sanchez, Tax No. 963740 and Police Officer Melanie Obrien, Tax No. 971586

Commissioner Tisch:

I am writing in response to the letter from Inspector Craig Contera, dated December 27, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and impose one vacation day penalty, each. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Inspector Contera’s notification.

Inspector Contrera stated that after reviewing the recommendation of the CCRB, you determined that charges should be retained. The CCRB disagrees with your recommendation.

It is undisputed that Officer Sanchez admitted that that he did not provide any occupant of the vehicle with a business card at any point during the interaction. PO Sanchez did not believe he was required to provide any occupant of the vehicle with a business card because none of them requested one. He believed he was only required to provide a business card if the occupants of a vehicle specifically requested a business card. Additionally, it is undisputed that PO O'Brien did not take § 87(2)(b) or § 87(2)(b) complaint over the phone against the officers involved in the vehicle stop. PO O'Brien said that she did not take this complaint because § 87(2)(b) and § 87(2)(b) did not have enough information about the subject officers.

CCRB disagrees that Charges and Specifications should be retained and based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue

Charges and Specifications against PO Sanchez and PO O' Brien in this matter.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

January 3, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

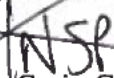
Re: CCRB Case No. 202306084 (Incident Date: July 5, 2023) regarding Police Officer Arturo Sanchez, Tax No. 963740 (PODS No. C-032265) and Police Officer Melanie Obrien, Tax No. 971586 (PODS No. C-032267)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated January 3, 2025, regarding the CCRB case involving Police Officer Arturo Sanchez and Police Officer Melanie Obrien and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of said officers for the reasons expressed in my December 27, 2024 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day to each officer for their alleged misconduct.

Sincerely,


Craig Contrera
Inspector
Executive Officer
Police Commissioner's Office